

**BEFORE THE
FEDERAL MARITIME COMMISSION**

20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH &
BEYOND INC., *Complainant*,

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT
(FMC#011982) consisting of EVERGREEN MARINE
CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK)
LIMITED, ITALIA MARITTIMA SpA, EVERGREEN
MARINE (HONG KONG) LTD., AND EVERGREEN
MARINE (SINGAPORE) PTE. LTD., *Respondents*.

DOCKET NO. 24-12

ELECTRONIC DISCOVERY AGREEMENT

Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen” or “Respondents”) and 20230930-DK-Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc. (“BBBY” or “Complainant”), by and through their undersigned counsel, hereby agree to the terms and conditions set forth in this Electronic Discovery Agreement (“Agreement”).

RECITALS

IT IS HEREBY AGREED:

A. General Terms.

1. Application. The procedures set forth in this Agreement shall govern the production of “documents” and “electronically stored information” as those terms are used in the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure, 46 C.F.R. Section 502.1 *et seq.* (the “Rules”), and the Federal Rules of Civil Procedure (including Rule 34 thereof) to the extent incorporated by Rule 12 of the Rules, 46

C.F.R. Section 502.12, that are stored in electronic format, including paper documents that have been converted to an electronic format (collectively, “Data”), in the above-captioned action (the “Proceeding”) before the Commission or any other legal proceeding brought in furtherance or support of, or otherwise in connection with, this Proceeding. In connection with specific discovery requests, the Parties may meet and confer to discuss the application of this Agreement to the production of information from back-up media, but nothing in this Agreement requires or creates an obligation to produce information from back-up media. In addition, in the event that any Party identifies a particular source of responsive documents or electronically stored information for which application of this Agreement would be unduly burdensome or impractical (e.g., Data for which word searches would be impossible or otherwise impractical), the Party identifying the source will promptly notify the other Party and the Parties will meet and confer concerning appropriate modifications of this Agreement with respect to that source.

2. Reservation of Rights. Nothing in this Agreement is intended to obligate the Parties beyond that which is required under the Commission’s Rules or any applicable state or federal statutes. Each Party reserves the right to object to discovery of Data under such Rules and statutes, including as it relates to format of production.
3. Production Time Period. The “Production Time Period” from which Data is to be produced under this Agreement shall be determined in reference to the applicable discovery requests, subject to objection by the party from which production is sought. The Parties are meeting and conferring in an attempt to resolve promptly any disputes over the appropriate Production Time Periods and, in the event of any such disputes,

the Production Time Period under this Agreement shall be the period agreed to by the Parties or as ordered by the Presiding Officer.

4. Confidentiality Order. All Data produced in response to discovery requests shall be subject to the Confidentiality Order filed by the Parties and entered by the Presiding Officer in the Proceeding.

B. Disclosures

1. Search Methodology and Custodial Sources. After receiving a producing Party's response to a Discovery Request and any responsive Data produced pursuant thereto, a requesting Party may request the producing Party to disclose the search terms or other methodology employed by the producing party to locate, or attempt to locate, responsive Data and the custodial, noncustodial and third-party data sources searched. To the extent permissible without waiving any attorney-client privilege or attorney work product protections, which the Parties expressly seek to preserve, the producing Party shall make such disclosure within seven (7) business days after such a request. The Parties shall thereafter confer in good faith about the appropriateness of the search methodology and searched data sources and whether any further search terms or methodology should be employed, or any other data sources should be searched, to locate additional responsive Data.

C. Data Discovery and Production Procedures

1. On-Site Inspection of Electronic Media. Such an inspection shall not be required absent a demonstration by the requesting party of specific need and good cause or by agreement of the Parties.

2. Format. The producing party shall produce all responsive Data that is not subject to a claim of privilege consistent with this Agreement in TIFF format, or alternatively, in native format. The Parties contemplate that textual files (e.g., .pdf files, .doc or .docx files, .msg or .pst files, etc.) will ordinarily be produced in TIFF format and that audio, video or graphic files (e.g., .mp3, .mov, .mp4, .wmv, .avi, .jpg, .jpeg, .dwg, .tif and .gif files) will ordinarily be produced in native format. Spreadsheet documents (such as documents created in or extracted from Excel) shall be produced in native format unless redactions are applied. Spreadsheet documents requiring redaction may be produced in TIFF format or in native format subject to agreement between the Parties with respect to a native Excel redaction process. The TIFF production must be Bates numbered with accompanying load files containing available metadata and extracted text. The producing party will use reasonable efforts to extract the metadata fields listed in Appendix A from native documents, and in the TIFF production those fields will be populated with the same information as if the producing party were producing the documents in native format.
3. Production Media. The producing party shall produce Data on encrypted computer or electronic media accessible by use of a strong password, including without limitation cloud storage, FTP site, flash drive, CD-ROM, DVD, external hard drive (with standard PC-compatible interface), or such other media as the Parties may agree upon (“Production Media”). The producing party shall affix a unique identifying label to each piece of Production Media, which shall identify the date of the production and the sequence of the material in that production (e.g., “2024 01 01 – DFT-000001 to DFT-001000”).

4. Emails and Attachments. Unless subject to a claim of privilege or otherwise protected from production, responsive emails shall be produced with the attachment immediately following the parent document in sequential order, while maintaining the relationship between the parent file and each of its attachments. Likewise, responsive attachments not subject to a claim of privilege shall be produced with the corresponding parent email immediately preceding the document in sequential order, while maintaining the relationship between the parent tile and each of its attachments.
5. e-Duplication. The Parties may use software to identify duplicate documents that are in the files of individual or multiple Production Custodians. If a duplicate document exists in the files of individual or multiple Production Custodians and that document is responsive and nonprivileged, the producing party shall only be required to produce one copy of the document. If there is any alteration of a document, it shall not be considered a duplicate under this provision. If the producing party becomes aware of any file that was incorrectly filtered during the de-duplication process, the producing party shall promptly produce the document to the requesting party. In addition, because of the de-duplication procedure, the Parties recognize that a privileged document may only be logged one time, even though it may exist in the files of multiple Production Custodians. These de-duplication and threading processes are intended as cost-saving measures. If any question arises regarding whether a particular Production Custodian sent, received or maintained a particular document that was not produced under this process, the Parties will meet and confer to resolve any questions or disputes.
6. Threading. The parties may use analytics technology to identify email threads and need only produce the unique most inclusive copy and related family members and may

exclude lesser inclusive copies. Upon reasonable request, the producing party will produce a less inclusive copy.

7. Appearance and Content. Subject to redactions by the producing party, each document's electronic image shall, to the extent reasonably practicable, convey the same information and image as the original document.
8. Color. TIFF images shall be produced in monochrome (black and white). Upon a request from the requesting party the parties will meet and confer regarding the production of certain documents in color. If an original document contains color and such color is necessary to understand or derive the relevant content from the document, a request to produce such materials in color is presumptively reasonable.

D. TIFF Protocols

1. Creation of TIFF Files. The producing party shall create single page group IV TIFF files of electronic documents. To the extent that the producing party has converted paper documents into TIFF format, the producing party will then produce such paper documents in TIFF format. Each TIFF shall be endorsed with a unique document identifier (i.e., Bates stamp number). A single-page TIFF slip-sheet will be included in the production for any document produced in native format.
2. OCR. To the extent that the producing party has applied Optical Character Recognition (OCR) to paper documents converted to TIFF format, the producing party will produce such documents along with the OCR text. A single OCR text file shall be produced for each document and be named consistently with the starting bates label of the document (e.g., for a document spanning DFT-0000001 - DFT-0000009, the production would

include DFT-0000001.txt and this text file would include all OCR text from DFT-0000001 - DFT-0000009).

3. Extracted Text. For TIFF files generated from electronic documents, the producing party shall provide extracted and word searchable text files. A single extracted text file shall be produced for each document and be named consistently with the starting bates label of the document (e.g., for a document spanning DFT-0000001 - DFT-0000009, the production would include DFT-0000001.txt and this text file would include all extracted text from DFT- 0000001 - DFT-0000009).
4. Load Files. Subject to Section D.7, for Data that the producing party produces in TIFF format, the producing party shall produce (a) a corresponding file that relates to a set of scanned images that indicates where individual pages belong together as documents and/or attachments (a “Load File”) to accompany the TIFF image, which shall include, for each file, the metadata associated with the file (if available); and (b) a corresponding file that contains a page-level cross reference between the TIFF images, their paths and/or locations, and their assigned document numbers (an “Image Load File”). Said load files shall be compatible with Concordance/Opticon. If in a particular instance the above steps are not reasonably possible, then the producing party shall disclose the nature and extent of the difficulties, and the Parties will seek to agree on an alternate means of production.
5. Document Numbering. For Data that the producing party produces in TIFF format, the producing party shall electronically “burn” a legible, unique Bates number onto each page at a location that does not obliterate, conceal or interfere with any information from the source document (document numbers shall be in the format “[Party Identifier]-

00000001”). Documents produced in native format shall include a unique Bates number in the file name and on its corresponding TIFF slip-sheet.

6. Claims of Confidentiality. As set forth in the Confidentiality Order filed by the Parties, the producing party shall electronically “burn” the “Confidential” or “AEO” designation onto each page of the document containing “Confidential Information” or AEO material, respectively, before the document is produced in TIFF format. Consistent with the Confidentiality Order, any inadvertent failure to comply with this procedure shall not waive any protection or Confidential or AEO treatment of the document. Documents produced in native format shall include the Confidential or AEO designation in the file name and on its corresponding TIFF slip-sheet.
7. Redactions. For Data that the producing party produces in TIFF format, if the producing party is redacting information from a page because it is privileged or is work product or protected personally identifiable information (“PII”) the producing party shall electronically “burn” the words “Redacted - A/C Privilege”, “Redacted – WP”, or “Redacted – PII” (or, where necessary, an abbreviation such as “RD – ACP” or “RD – WP”, “RD – PII”) onto the page at or reasonably near to the location of the redaction(s). If the producing party redacts a document, it may withhold from the document’s Load File only the metadata directly associated with the redaction. The parties shall meet and confer to discuss redactions for any other purpose.
8. Authenticity. No Party shall object that Data produced pursuant to this Agreement is not authentic based upon the file naming convention described in this Section D. The Parties otherwise reserve all rights regarding their ability to object to the authenticity of documents, including any associated metadata.

9. Quality Control Measures. The producing party shall take reasonable steps to ensure that all Data is produced without technical defects that could impair the use of such Data. If either Party becomes aware of any potential defect or delay with any of the procedures described herein, that Party shall promptly advise the other Parties as soon as possible so that the Parties can meet and confer in an attempt to address the problem. To the extent replacement Data is required due to a technical defect in the production of Data, the producing party shall promptly produce the replacement Data. Effective quality control measures will be instituted by all Parties to ensure that the Production Methodology and Sections C and D herein work as intended by the Parties.

E. Privilege

1. A producing party shall create a privilege log of all documents fully withheld from production on the basis of a privilege or protection, unless otherwise agreed or excepted by this Agreement. Privilege logs shall include a unique identification number for each document and the basis for the claim (attorney-client privileged or work-product protection). For Data, the privilege log may be generated using available metadata, including author/recipient or to/from/cc/bcc names; the subject matter or title; and date created. Should the available metadata provide insufficient information for the purpose of evaluating the privilege claim asserted, the producing party shall include additional information consistent with Rule 26 of the Federal Rules of Civil Procedure. The Parties will endeavor to deliver their respective privilege logs to each other within thirty (30) days after substantial completion of production of non-privileged documents and ESI in this Proceeding.

2. Redactions need not be logged so long as the basis for the redaction is clear on the redacted document.
3. The Parties do not intend to include on their respective privilege logs (a) privileged or work-product information generated after the filing of the initial complaint in this Proceeding or (b) privileged or work-product communications between the Parties and their respective outside counsel of record in this Proceeding from before the filing of the initial complaint in this proceeding concerning Complainant's claims against Respondents that are now the subject of this Proceeding.
4. Activities undertaken in compliance with the duty to preserve information are protected from disclosure and discovery under Fed. R. Civ. P. 26(b)(J)(A) and (B).
5. Consistent with the principles of Rule 502(d) of the Federal Rules of Evidence, the production of any documents in this Proceeding shall not, for the purposes of this Proceeding or any other federal or state proceeding, constitute a waiver by the producing party of any privilege applicable to those documents, including the attorney-client privilege, attorney work-product protection, or any other privilege or protection recognized by applicable law. Information produced in discovery that is protected as privileged or work product shall be immediately returned to the producing party, and its production shall not constitute a waiver of such protection.

F. Other Terms and Conditions

1. Cooperation. The Parties shall, as necessary, meet and confer to exchange information regarding issues associated with any electronic production of Data.
2. Variance. Any practice or procedure set forth herein may be varied by written agreement of the Parties.

3. Notices. All notices, request and demands to or upon any of the Parties under this Agreement shall be in writing and delivered by email, addressed as follows, or to such other email

For **Evergreen**: Ronald Betancourt, Email: rbetancourt@bge-law.com; John Greco, Email: jgreco@bge-law.com; Alton J. Evans, Email: aevans@bge-law.com; Clayton J. Vignocchi, Email: cvignocchi@bge-law.com; Anthony Blair, Email: ablair@bge-law.com.

For **BBBY**: Karl Huth, Email: huth@huthreynolds.com; Matthew Reynolds, Email: reynolds@huthreynolds.com; Gregory Crapanzano, Email: gcrapanzano@huthreynolds.com; Mohini Priya, Email: mpriya@huthreynolds.com, Caden Otunu, Email: cotunu@huthreynolds.com.

A Party may change its email addresses for Notices by notice in the manner provided in this subsection.

4. Objections to Admissibility Preserved. Nothing in this Agreement shall be construed to affect in any way the rights of any Party to object to the admissibility of any materials into evidence at any hearing or trial in this Proceeding.
5. No Waiver of Privileges. Nothing in this Agreement shall constitute a waiver by any Party of any claim of attorney-client privilege, attorney work-product protection, or any other protection from discovery, or any rights or protections the Party has pursuant to the Confidentiality Order, including the clawback agreement provisions consistent with the principles of Rules 502(d) and (e) of the Federal Rules of Evidence.
6. Service Provider Issues. If a discovery services provider selected by a party has difficulty complying with certain provisions of this Agreement, the Parties will meet

and confer in good faith in an effort to modify this Agreement to address the vendor's issues.

SO STIPULATED this 5th day of December 2024.

HUTH REYNOLDS LLP

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Agreement (FMC # 011982) et al.*

APPENDIX A-DATA PRODUCTION FORMAT

Data Production Format

I. Overview

- A. All documents should be produced as Bates-stamped tagged image file format (“TIFF”) images along with an image load/cross reference file, a data load file with fielded metadata, and document-level extracted text for electronically stored information or optical character recognition (“OCR”) text for scanned hard copy documents. Details regarding requirements, including files to be delivered in native format, are below.
- B. All metadata dates and time should be processed in UTC (Coordinated Universal Time) time standard.
- C. Media may be delivered on CDs, DVDs External USB hard drives, or via FTP or similar secure link. Each media volume should have its own unique name and a consistent naming convention (e.g., ZZZ001 or SMITH001).

II. TIFF Image Requirements

- A. All documents should be produced as TIFF images in 300x300 dpi Group IV single page monochrome format.
- B. All such images should be sequentially Bates-stamped. Each filename must be unique and match the Bates number of the page. The filename should not contain any blank spaces and should be zero padded (for example ABC00000001).
- C. For spreadsheet files (e.g., Microsoft Excel) - Hidden columns, rows, and sheets.

III. Native Format Requirements

A. Spreadsheet Files

- 1. Spreadsheet files (e.g., Microsoft Excel) should be provided in native format.
- 2. In lieu of a TIFF image version of each spreadsheet file, a Bates-stamped TIFF placeholder file should be produced along with the native format version of each file.
- 3. When redaction is necessary, a redacted TIFF version may be produced. The parties reserve the right to request access to the native format versions of such files.

IV. Data Load File and Extracted Text/OCR Requirements

- A. A data load file should be provided with each production.

- B. The file should be a Concordance-loadable data file, also known as a “DAT” file, and should contain Bates-stamp and metadata information as detailed below. The metadata fields for documents with redaction will be left blank.
- C. Extracted text and/or OCR text should not be embedded in the DAT file but should rather be provided as separate, document-level text files. Document-level text file names should contain the beginning Bates number information of the document. If a document is provided in native format with a placeholder tiff, (e.g., spreadsheet files) the text file should contain the extracted text of the native file. Unless otherwise negotiated, no searchable text need be provided for redacted documents.
- D. Foreign language text files and metadata should be delivered with the correct encoding to enable the preservation of the documents' original language.
- E. The requested delimiters and qualifiers to be used in the DAT file are:
- Record delimiter: Windows newline/Hard return ASCII character 013 ()
Field delimiter: ¶ (ASCII 20)
Multi-value delimiter: Semicolon ; (ASCII 59)
Text qualifier: Small thorn þ (ASCII 254)
- F. The DAT file should have a header line with field names and include the following fields:

Field	Comments
BegBates	Beginning Bates number
EndBates	Ending Bates number
BegRange	Bates number of first page of family range, e.g., first page of email.
End Range	Bates number of last page of family range, e.g., last page f last attachment to an email.
PageCount	Number of pages in document
Title	Loose file and attachments only
Custodian	Loose files, attachments, and email. Custodian full name.
Duplicate Custodian	Loose files, attachments, and email. Custodian full name. (For custodians that had duplicates of documents that are not being produced because they were duplicates.)
Author	Loose files and attachments only.
Last saved By	Loose files and attachments only.
From	Email only.
To	Email only.
CC	Email only.
BCC	Email only.
Subject	Email only.
Attachment Names	Names of attachments embedded in email. For emails only.
DateCreated	Loose files and attachments only. MM/DD/YYYY
TimeCreated	Loose files and attachments only. 00:00:00 hh:mm:ss

